Showing contexts for: **divorce petition** in Snehasis Rashbihari Batabyal vs Dolan Acharya on 1 September, 2026

Context size: Small | Current | Large | Larger

PARTICULARS OF THE LITIGATION:

8. The father had filed **Petition** No. A-656 of 2016 for dissolution of marriage under Section 27(1)(d) of the Special Marriage Act, 1954. The parties filed consent terms, and the **divorce petition** was converted into a **petition** under Section 28 of the Special Marriage Act for dissolution of marriage by mutual consent. At that time when the **divorce petition** was filed, the child was with the father. By order dated 1st February 2020, the parties were permitted to convert the **divorce petition** into a **petition** for **divorce** by mutual consent. The consent terms dated 15th May 2017 at Exhibit 46, the modified consent terms 1-WP-14746-2024-IA-236-2025.doc dated 18th July 2017 at Exhibit 56, and the final consent terms dated 21st December 2019 at Exhibit 85 were directed to be made part of the decree in the **petition** for **divorce** by mutual consent. Accordingly, by order dated 1st February 2020, the marriage between the parties was dissolved by a decree of **divorce** by mutual consent under Section 28 of the Special Marriage Act.

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14. The mother had filed **Petition** No. D-139-2023, for custody of the minor child. She also filed Regular Darkhast No. 4 of 2024 for implementation of the 11th November 2021. The mother thereafter 1-WP-14746-2024-IA-236-2025.doc filed Miscellaneous Civil Application No. 5 of 2024, in **Divorce Petition** No. 656 of 2016. She applied for modification of the decrees dated 1st February 2020 and 11 th November 2021. The mother prayed for sole and permanent custody of the child. By

the judgment and order impugned in these **petition**s, the said Miscellaneous Application No. 5 of 2024 is finally decided. Learned Judge of the family court partly allowed the application and modified the decree dated 11 th November 2021 in Miscellaneous Application No. 70 of 2021. Learned Judge of the family court came to the conclusion that the joint parenting would be necessary as desired by the child. The learned Judge therefore directed that both parents were entitled to joint parenting of the child and 50:50 vacation time, with the child's ordinary residence with the mother from the next school academic year. The mother was made responsible for the custody, care, safety, and security of the child during the child's ordinary stay with her, for the child's maintenance expenses, and for 50% of the child's educational expenses. The father was held responsible for paying 50% of the child's school fees and educational expenses.

SUBMISSIONS ON BEHALF OF THE MOTHER:

> 24. The mother appeared in person. She tendered a copy of the roznama of the main **divorce petition** and submitted that it was filed in March 2015. The mother was required to apply for an injunction to protect the matrimonial home where she was residing with the child.

The mother relied upon various objections raised in the affidavit-in- reply filed in the interim application in the father's **petition**. She relied on the e-mails she sent to the father, which outlined the issues to be addressed regarding the child. The medical report would show that the medical issues of the child were never addressed when the child was with the father. She had always contributed towards the child's expenses and had also transferred the amount of Rs. 5.5 Lakhs to the father. The said amount and the other expenses incurred by the mother were returned by the father before filing the **divorce petition**. She relied upon the e-mails exchanged between the parties when the 1-WP-14746-2024-IA-236-2025.doc child was with his paternal

grandmother at Calcutta. In view of the various proceedings, her job was terminated, and thus, she faced financial constraints.

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34. From the record, it appears that until around 4 years of age, 1-WP-14746-2024-IA-236-2025.doc the child resided with the mother, and that during the summer vacation of April 2016, the father took the child to Kolkata at his mother's place. The father had applied for **divorce** in the family court sometime in March 2015. There are printouts of emails on record showing that the parties exchanged settlement proposals. Due to an apprehension that the father might dispose of the matrimonial flat, the mother applied for protection orders. By an Order dated 2 nd December 2016, the family court restrained the father from dispossessing the mother from the flat. Since the child was not brought back to Mumbai, the mother applied in the **divorce petition** for directions to bring the child to Mumbai. The parties filed consent terms in the **divorce petition**, and ultimately the child was handed over to the mother in July 2017. Thereafter, in view of the modified consent terms, the child was handed over to the father on 21 st December 2019. Strangely, in the modified final consent terms dated 21 st December 2019, as set out in Exhibit 85, no provision was included for the mother to meet the child. The father was granted sole custody.